

HOUSE No. 4943

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, January 23, 2026.

The committee on Financial Services, to whom was referred the petition (accompanied by bill, House, No. 1206) of Bradley H. Jones, Jr., and others relative to health insurance coverage for epinephrine injectors, reports recommending that the accompanying bill (House, No. 4943) ought to pass.

For the committee,

JAMES M. MURPHY.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to epinephrine injectors.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 32A of the General Laws is hereby amended by inserting after
2 section 17Z the following section:-

3 Section 17AA. Any coverage offered by the commission to an active or retired employee
4 of the commonwealth insured under the group insurance commission shall provide coverage for
5 the appropriate weight-based dosage of epinephrine injectors. The benefits in this section shall
6 not be subject to any greater deductible, coinsurance, copayments, or out-of-pocket limits than
7 any other benefit provided by the commission. For purposes of this section the term
8 “epinephrine injector” shall mean an auto-injector approved by the federal Food and Drug
9 Administration for the administration of epinephrine and a pre-filled syringe approved by the
10 federal Food and Drug Administration and used for the administration of epinephrine that
11 contains a pre-measured dose of epinephrine that is equivalent to the dosages used in an auto-
12 injector.

SECTION 2. Chapter 118E of the General Laws is hereby amended by inserting after section 10Z the following section:-

Section 10AA. The division and its contracted health insurers, health plans, health maintenance organizations, behavioral health management firms, and third-party administrators under contract to a Medicaid-managed care organization or primary care clinician plan shall provide coverage for the appropriate weight-based dosage of epinephrine injectors. An epinephrine injector prescribed in this section shall not be subject to any greater deductible, coinsurance, copayments, or out-of-pocket limits than any other prescribed drugs provided by the division. For purposes of this section the term “epinephrine injector” shall mean an auto-injector approved by the federal Food and Drug Administration for the administration of epinephrine and a pre-filled syringe approved by the federal Food and Drug Administration and used for the administration of epinephrine that contains a pre-measured dose of epinephrine that is equivalent to the dosages used in an auto-injector.

SECTION 3. Chapter 175 of the General Laws is hereby amended by inserting before section 47CCC the following section:-

Section 47AAA. Any blanket or general policy of insurance described in subdivision (A), (C), or (D) of section one hundred and ten which is issued or subsequently renewed by agreement between the insurer and the policyholder, within or without the commonwealth, during the period within which this premium is effective, or any policy of accident or sickness insurance as described in section one hundred and eight which provides hospital expense and surgical expense insurance and which is delivered or issued for delivery or subsequently renewed by agreement between the insurer and the policyholder in the commonwealth, during the period

35 within which this provision is effective, or any employers' health and welfare fund which
36 provides hospital expense and surgical expense benefits and which is issued or renewed to any
37 person or group of persons in the commonwealth, during the period within which this provision
38 is effective, shall provide coverage for the appropriate weight-based dosage of epinephrine
39 injectors. An epinephrine injector prescribed in this section shall not be subject to any greater
40 deductible, coinsurance, copayments, or out-of-pocket limits than any other prescribed drug
41 provided by the insurer. For purposes of this section the term "epinephrine injector" shall mean
42 an auto-injector approved by the federal Food and Drug Administration for the administration of
43 epinephrine and a pre-filled syringe approved by the federal Food and Drug Administration and
44 used for the administration of epinephrine that contains a pre-measured dose of epinephrine that
45 is equivalent to the dosages used in an auto-injector.

46 SECTION 4. Chapter 176A of the General Laws is hereby amended by inserting after
47 section 8DDD the following section:-

48 Section 8EEE. Any contract between a subscriber and the corporation under an individual
49 group or hospital service plan that is delivered, issued, or renewed within the commonwealth
50 shall provide coverage for the appropriate weight-based dosage of epinephrine injectors. An
51 epinephrine injector prescribed in this section shall not be subject to any greater deductible,
52 coinsurance, copayments, or out-of-pocket limits than any other prescribed drug provided by the
53 insurer. For purposes of this section the term "epinephrine injector" shall mean an auto-injector
54 approved by the federal Food and Drug Administration for the administration of epinephrine and
55 a pre-filled syringe approved by the federal Food and Drug Administration and used for the
56 administration of epinephrine that contains a pre-measured dose of epinephrine that is equivalent
57 to the dosages used in an auto-injector.

SECTION 5. Chapter 176B of the General Laws is hereby amended by inserting after section 4DDD the following section:-

Section 4EEE. Any subscription certificate under an individual or group medical service agreement delivered, issued, or renewed within the commonwealth shall provide coverage for the appropriate weight-based dosage of epinephrine injectors. An epinephrine injector prescribed in this section shall not be subject to any greater deductible, coinsurance, copayments, or out-of-pocket limits than any other prescribed drug provided by the insurer. For purposes of this section the term “epinephrine injector” shall mean an auto-injector approved by the federal Food and Drug Administration for the administration of epinephrine and a pre-filled syringe approved by the federal Food and Drug Administration and used for the administration of epinephrine that contains a pre-measured dose of epinephrine that is equivalent to the dosages used in an auto-injector.

SECTION 6. Chapter 176G of the General Laws is hereby amended by inserting after section 4VV the following section:-

Section 4WW. Any individual or group health maintenance contract shall provide coverage for the appropriate weight-based dosage of epinephrine injectors. An epinephrine injector prescribed in this section shall not be subject to any greater deductible, coinsurance, copayments, or out-of-pocket limits than any other prescribed drug provided by the commission. For purposes of this section the term “epinephrine injector” shall mean an auto-injector approved by the federal Food and Drug Administration for the administration of epinephrine and a pre-filled syringe approved by the federal Food and Drug Administration and used for the

79 administration of epinephrine that contains a pre-measured dose of epinephrine that is equivalent
80 to the dosages used in an auto-injector.